

Ram Babu Singh v. State of U.P.

Allahabad High Court · Division Bench · 18 December 2019 · WRIT - C No. - 41962 of 2019 · **Writ disposed; EE to hear objections; s.127 liberty; recovery stayed**

HEADNOTE

A consumer challenged a revenue recovery citation for electricity dues, alleging coercive action without hearing and without following the U.P. Electricity Supply Code, 2005. Without examining the demand on merits, the High Court directed him to appear before the Executive Engineer with objections, required a speaking final order within four weeks, stayed coercive action for seven weeks, and reserved liberty to appeal under Section 127 of the Electricity Act, 2003 if aggrieved by that final order.

FACTUAL SUMMARY

Ram Babu Singh challenged a demand-cum-citation dated 25 November 2019 in R.C. Form 36 under section 169 read with Rule 141(3) of the U.P. Revenue Code for Rs. 4,00,428. He alleged that the electricity department was taking coercive recovery without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. The Division Bench heard counsel for the petitioner and the electricity department and disposed of the writ on directions.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

section-127-appeal

HOLDING

Without deciding the demand on merits, the Court directed the consumer to appear before the Executive Engineer with objections and evidence; the Engineer shall pass a speaking final order within four weeks; coercive recovery is stayed for seven weeks or until disposal of the objection, whichever is earlier; if aggrieved by that final order, the consumer may appeal under Section 127 of the Electricity Act, 2003. Default in appearance revives the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The writ was disposed by sending the consumer to the Executive Engineer for a speaking final order on objections, with Section 127 appeal reserved if that order goes against him, and without a merits grant or refusal on the demand. ¶ 1

alternative-remedy-section-127-appeal After the Executive Engineer's speaking final order, the consumer's remedy if aggrieved is an appeal under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RS. 4,00,428 DEMAND AND RECOVERY CITATION, AND WHETHER SUPPLY CODE, 2005 PROCEDURES HAD BEEN FOLLOWED

The Court took a lenient view and relegated the consumer to objections before the Executive Engineer without examining those questions. ¶ 1